

CONNOR VS. FAIRWAY OAKS MOBILE HOME PARK, ET AL.

CASE NUMBER: 25CV-0208664

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on May 20, 2026 to Plaintiff Sean Connor, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on September 11, 2025 and no Proof of Service of Summons has been filed. The Court notes that a Substitution of Attorney was filed on June 4, 2026 and Plaintiff is now represented by counsel, however, the response filed by counsel indicates that new counsel will need to be retained. Due to the issue with counsel, the Court will continue the Order to Show Cause to **Monday, September 21, 2026 at 8:30 a.m. in Department 63**. Plaintiff is ordered to provide an update regarding counsel and service no less than five court days prior to the hearing. **No appearance is necessary on today’s calendar.**

KENDALL VS. HAT CREEK CONSTRUCTION & MATERIALS, INC.

CASE NUMBER: 25CV-0208306

Tentative Ruling on Motion for Leave to File First Amended Complaint: Plaintiff Cindy Kendall seeks leave to file a First Amended Complaint. Defendant Hat Creek Construction & Materials, Inc. objects to the motion being heard on the ground that it was not properly noticed. The motion was filed on June 12, 2026. Printed in the caption and the body of the Notice is a hearing date of July 9, 2026. July 9 is crossed out and July 13 is interlineated in blue pen on the caption. A Proof of Service is attached to the Notice indicating electronic service on June 12, 2026. Defendant filed an Objection on July 1, 2026 and argued that electronic service on June 12, 2026 for a July 9, 2026 hearing date is not timely per CCP §§ 1005(b) and 1010.6. Attached to the Declaration of Benjamin L. Kennedy is the copy of the motion received by Defendant, which does not include the July 13, 2026 hearing date. On July 1, 2026, Plaintiff filed an Amended Notice of Motion listing the July 13, 2026 hearing date. Notice on July 1, 2026 for a July 13, 2026 hearing date is untimely. CCP § 1005(b). The motion is **DENIED** without prejudice. Plaintiff provided a proposed Order that will be modified to reflect the Court’s ruling. Should Plaintiff seek a continuance of the motion in order to provide proper notice, Plaintiff may make that request at the time of the hearing.

In reviewing this file in preparation of the instant tentative ruling, the Court notes a “Declaration of Plaintiff’s Counsel Jonathan Kaldas” filed Jun 23, 2026. Strangely, the caption does not indicate what the Declaration is intended to support. It also makes no reference to a motion nor a motion date. Also in the file is a pleading, “Defendant Hat Creek Construction & Materials, Inc.’s Objections to the Declaration of Plaintiff’s Counsel Jonathan Kaldas” filed July 1, 2026. The objections are sustained in their entirety.

*The Court notes that Plaintiff argued in the moving papers that the matter is not set for trial. It appears that the Order filed February 4, 2026 as a result of the Joint Stipulation to Continue Trial filed on January 30, 2026 may have not been served on all parties. The Mandatory Settlement Conference is calendared for **Monday, November 16, 2026 at 1:30 p.m. in Department 63** and the trial is calendared for **Tuesday, January 5, 2027 at 8:45 a.m. in Department 63**.*

LAWHEED, ET AL. VS. FULK

CASE NUMBER: 24CV-0206140

and

MOSBY VS. BRENT, ET AL.

CASE NUMBER: 25CV-0209356

Tentative Ruling on Motion to Consolidate: Plaintiffs Todd Lawheed and Amanda Mosby in Case No. 206140 and Plaintiff Amanda Mosby in Case No. 209356 move to consolidate the two matters for all purposes pursuant to CCP § 1048. Defendant Carol Fulk was properly served in 206140. “Where a defendant has not appeared,

service of notice or papers need not be made upon the defendant.” CCP § 1048. Neither Defendant has appeared in 209356, however it appears that Defendant Fulk will be represented by the same counsel as in 206140 and Plaintiffs provided a courtesy copy of the motion to Defendant Dennis L. Brent’s counsel. Therefore, the motion was properly noticed. Neither Defendant filed an Opposition.

Merits. Motions to consolidate have certain pleading requirements that are described in CRC 3.350. Plaintiffs have complied with the requirements set forth in CRC 3.350.

When actions involving a common question of law or fact are pending before the court, it may order a joint hearing or trial of any or all the matters in issue in the actions; it may order all the actions consolidated and it may make such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay.

CCP § 1048(a).

Consolidation is appropriate where economy and convenience would be served by having the matters consolidated. The purpose of uniting separate lawsuits is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). See *Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal. App. 4th 976, 978-979.

The two cases here stem from the same piece of real property. The two matters present common questions of law and fact and it appears that consolidating the matters is in the interest of judicial economy. No issues of prejudice have been raised and, despite being properly noticed, no party opposed the motion.

The Motion to Consolidate is **GRANTED**. 209356 is consolidated into 206140 for all purposes. All future filings will be in the lead case 206140, which is assigned to Department 63. Plaintiffs did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are to prepare the Order and provide copies for both files.

The Court notes that 206140 is on calendar today for review regarding status of settlement or trial setting. An appearance will be necessary at 9:00 a.m. Prior to the review hearing, the parties are to meet and confer to discuss whether the dates currently set in 209356 are acceptable. The present dates in 209356 are November 3, 2026 for trial and September 8, 2026 for Mandatory Settlement Conference.

SERAQUIEL VS. CARPENTER, ET AL.

CASE NUMBER: 25CV-0208634

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause Re: Sanctions issued on June 4, 2026 to Plaintiff Christine L. Seraquiel, in pro per, for failure to timely serve all defendants as required by California Rules of Court, Rule 3.110(b) and failure to timely seek entry of default as required by CRC 3.110(g). “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” CRC 3.110(b). The Complaint in this matter was filed on September 8, 2025 and a valid Proof of Service of Summons has not been filed for Defendant Shaun Michael Carpenter. Proof of Service of Summons was filed for Defendant Jeffery Del Vecchio on September 22, 2025, however, no Request for Entry of Default has been filed. “If a responsive pleading is not served within the time limits specified in this rule and no extension of time has been granted, the plaintiff must file a request for entry of default within 10 days after the time for service has elapsed.” CRC 3.110(g). Plaintiff did not file a written response to the Order to Show Cause.

Without sufficient excuse for the delays, sanctions are imposed in the amount of \$250 against Plaintiff, in pro per. The clerk is directed to prepare a separate Order of Sanctions. The Court will issue an Order to Show Cause Re: Dismissal for failure to timely serve per CRC 3.110(b), failure to timely seek entry of default per CRC